

1602
June 9

[p. 105]

PLYMOUTH
WATER-
WORKS case

Sir Francis
Drake
conveys the
river to
Plimmouth

Course of the
Court

Precedent
not required
where the
case is great
and neces-
sary, and for
the public
good

Serjeant Healle, now Queen's Serjeant,¹ moved that whereas by 27 Elizabeth, cap. 20, the river of Mewe [Meavy] is to be brought by the Maior & 'Cominaltye' of Plimmouth to the town of Plimmouth, which was done by the industry and charge of Sir Frauncis Drake,² to the great commodity of the town, the country, the Queen's Navy in the harbour there, and for the public good otherwise in the making of tinne, and by the benefit of the fresh water, and whereas a bill was preferred two years ago against

³ Grenefeilde and others for the riotous stopping of the course thereof, and for throwing down the banks and fosses; and a demurrer was entered thereupon, and certified [to be] insufficient; and now since Easter Term, the fosses and banks are thrown down and stopped, to the prejudice not of the town only, but of the public good; and thereupon he moved that, according to the course of the Court, it should be ordered that the River should be continued in the same course as it was at the time of the bill preferred. And the Lord Keeper ordered this accordingly, saying, that it was not material, even if it be not the course of the Court, for in such great cases, in which there was great mischief, and it was so necessary for the public good, a precedent was not necessary to direct them, but they could make an order according to the necessity and nature of the thing itself.⁴

¹ 'Sergeant Heale was made the Quenes serjeant this sommer, and rode circuit with Judge Gawdie in Sussex, Surrey, Kent, Essex, and Hartfordshire, wherein he plaide such pranckes, and so demeaned himselfe, that he is become both odious and ridiculous.' *Chamberlain's Letters*, Camden Soc., p. 152.

² 1589. 'Also this yere the composytyon was made betwene the town and Sir Fraunces Drake for the bringinge of the river of Meve to the towne, for which the towne haue paid hym ii C li., and more C li., for which he is to compounde

with the lordes of the lande over wich it commeth.'

1590. 'This yere on the daye of December Sir Fraunces Drake kneight, beganne to bringe the ryuer of Meve to the towne of Plymouth which, beinge in lenght about 25 myles, he with great care and diligence effected, and brought the river into the towne the xxiiijth day of Aprill then next after.' MSS. of the Corporation of Plymouth. *Hist. MSS. Comm.*, 9th Rep. App. pt. i. p. 278.

³ Blank in MS.

⁴ See Appendix VIII.

A cause was heard between Plowden and Blundell, plaintiffs, against Braughton, Counsellor of the Inner Temple, Powelle, Hues, and others, for riot and other misdemeanours.

Plowden
and
Blundell
v.
Braughton
and others

Riot and
other mis-
demeanours

The father of Plowden, being a grave lawyer,¹ a man of great judgment and honesty, having a lease from the Queen of the Rectory of Bishop's Castle in Shropshire, at the rent of £19 13s. 4d. *per annum*, and two decrees for this in the Exchequer, the defendant Braughton, having a lease of the Rectory of Lidberrye-northe, adjoining the Rectory of Bishop's Castle, intended [i.e. pretended] that this passed also by his lease, and by colour of this intended a year before to take the tithes, and would 'shuffle' for them, and procured labourers twenty miles distant by means of Hues, a Justice of the Peace, who sent them, and with them Braughton sent his servants, with carts and weapons, to carry the tithes, and they maimed and wounded the servants of Plowden; and Braughton, with other gentlemen, saw this, and did not countermand it.

[p. 106]

Riot in
taking tithes
Misdemeanour
in procuring
labourers

The misdemeanour was that Braughton, being a Judge in three Counties in Wales,² procured before himself as Judge an informer content to have his name used, while Braughton would maintain the suit at his own cost. But this was not proved by any one but one only, who had been sentenced to suffer at the pillory for perjury and other offences, which the Court would not suffer to be read, as he was sentenced before the suit commenced. For a Judge, in his just and honest courses, will be protected by this Court with grace and favour, and the proof to accuse him must be plain and apparent, and such evidence is only *ad informandam conscientiam*; but if he do evil and offend, this Court will punish him with great and heavy

Acquittal
of the mis-
demeanour
because no
proof

Judge
favoured in
well-doing,
and on the
contrary
Proof to
accuse a
judge must
be clear and
without
exception

¹ Edmund Plowden, of the Middle Temple, son of Humphrey Plowden of Plowden, in the parish of Lydbury North, Shropshire. Plowden Hall, which is still in the possession of the family, is a half-timbered building of the Elizabethan and Jacobean periods. It contains a private chapel

and two hiding-places; which are probably accounted for by the fact that Edmund Plowden the lawyer was a staunch Roman Catholic. There is a full-length recumbent monument to his memory in the Temple Church.

² A Justice of the Peace.

1602
June 9
Braughton
fined 200*l*.
and im-
prisonment,
and 'dis-
justiced'
[p. 107]
A Councillor
of the
Marches
can only be
removed by
the Queen

punishment. Braughton, being an erudite man, and in a place of justice and dignity for his virtue and erudition, *et quanto maior est dignitas tanto magis fuerit plus reum [sic]*, was fined £200, and removed from [his office as] Justice of the Peace, but being of the Council of the Marches, he is made by the Queen, and she gives him instructions, and he cannot be removed but by her. Two other defendants, gentlemen, each [fined] £100, the other defendants £20 each, and imprisonment. Braughton to pay the fines of the others who are not of ability. The Lord Keeper moved that the parties maimed should have their expenses and some recompence; *ad quod nihil fuit responsum*.¹

PIKE'S CASE

Order to
have those
whipped
who prefer
petitions for
trial at
common
law, after
the cause is
sentenced

The Lord Keeper moved that a man named Pike, after this court had sentenced [pronounced] a deed to be forged and [ordered] it to be cancelled, had moved by petition to him to have a trial at Common Law, and his wife, in time before, had preferred such a petition to the Queen and to him [the Lord Keeper]; And it was ordered by the Court that if she did this again, she should be lashed; and as to the right the husband had, the Court answered nothing.

ASCEWE
v.
EARL OF
LINCOLN

The Earl of
Lincolne
conforms
himself after
contempts
and impris-
onment

The Queen's Attorney moved between the Earl of Lincolne and Ascewe.² Now the Earl, after many contempts and disobeyings of orders and decrees of the Court, after conference with the said Attorney, submitted himself to the order of the Court, and craved a reference to two Judges to assess the damages; which was ordered accordingly.

Infamous
libel against
Privy
Councillors

The At-
torney may
use the
[p. 108]
messenger

He moved also that he, having preferred information against three for an infamous libel against some of state for conveying £3,000,000 out of the realm,³ etc., had seized the principal of them after attachment by a messenger, and he prayed to have several of the others committed; and if he did not answer the interrogatories within a brief time, to be held *pro confesso*. And all was ordered accordingly.

¹ See *post*, p. 147.

² See *ante*, pp. 12, 114.

³ Probably the case against

Michael Cawley and others, see *ante*, p. 143, and below.

In Camera Stellata, coram consilio ibidem, Veneris, 1602
11 Junij, 1602, Elizab. 44, Tr^{no} Trinitat.¹

The Attorney moved, in the great case of Caullye for libel, to have a short day to examine them.²

ATT.-GEN.
v.
CAWLEY and
others

Libel

The cross bill was heard, Braughton and others, plaintiffs, against Plowden, Blundell and others, defendants, for riots.³ It was a great bill, containing 66 sheets of paper, and much idle and frivolous matter against himself, as, after folio 40, "they assemble riotouselie & goe together in most freindelye & louing mann^r," etc., that no resistance was offered, and such ridiculous matter as moved very much laughter. But the Lord Keeper said, "Although it be good to be merrye some time, & this be S^t Barnabas daye, the longeste daye in the yeere, yet let vs not spende the hole daye in this place wth wordes to no purpose."

BRAUGHTON
v.
PLOWDEN
and others
Riot

Idle and
frivolous
bill

Facetiae

The riot was supposed to be made in taking the tithes of the Rectories of Bishop's Castle and Lidberrie Northe by colour of a lease in Braughton supposing them to be one entire thing, as on the day before, and the other lease to be void, being on a 'concealde title' and a *die datus*; and it was in like manner as before, namely:—

Riot in
taking
tithes. A
man may
do a just
thing, but
not justly:
a right
thing, but
not rightly

Braughton, on the day before the supposed riot, went to Plowden's house, and offered him that there might be a trial as to the tithes in question, or that Judge Owen,⁴

Braughton
uses a dis-
creet course

¹ Eight Councillors and Judges were present.

² The defendants were William Elston, Gilbert Wilkinson, Anthony Atkinson and Michael Cawley. They had published divers libels on the Privy Council, the Lord Treasurer, and others. *State Papers. Dom.*, Eliz., vol. 288, No. 7.

³ The last day of the terme, at the Starre Chamber, Atkinson, Wilkinson, Elson, and Cawley, the accusers of the Lord Treasurer, were, after a longe and tedious hearing, condemned in a fine, to be whipt, to stand on the pillorie and lose their eares, and to the gallies, or perpetuall imprisonment. The

first and the third found some litle favour, and were dispensed withall for whipping and their eares, in consideration the one was very penitent, and had revealed the whole plot and drift; the other for that he was a souldier, and so more subject to discontentment.' *Chamberlain's Letters*, Camden Soc., p. 144.

⁴ On Wensday last Atkinson and his fellowes had their payment in Cheapside according to the sentence in the Star Chamber.' *Ibid.*, p. 145. See *ante*, pp. 143, 146, and Appendix VII.

⁵ See *ante*, p. 145.

⁶ Thomas Owen, one of the Judges of the Common Pleas.